

MBA
(SEM IV) THEORY EXAMINATION 2022-23
INTERNATIONAL TRADE LAWS

Time: 3 Hours**Total Marks: 100****Note:** Attempt all sections. If require any missing data; then choose suitably.**SECTION A****1. Attempt all questions in brief.****2 x 10 = 20**

- (a) What is Marrakesh Agreement?
- (b) What are anti-dumping duties?
- (c) What is the difference between sanitary and phytosanitary?
- (d) What is the Agreement on Agriculture (AoA)? What are the two main objectives of the AoA?
- (e) Define the meaning and scope of Transnational Commercial Law.
- (f) What are the different types of international carriage?
- (g) What is the Foreign Trade Development and Regulation Act, 1992?
- (h) What is the Foreign Exchange Management Act, 1999?
- (i) What is the role of SAARC?
- (j) What are the recent challenges faced by the third world?

SECTION B**2. Attempt the following:****15 x 2 = 30****Case Study:**

Sun Pharmaceutical, a large pharmaceutical company in India, has been impacted by the World Trade Organization's (WTO) regulatory framework and trade agreements, including TRIPS, GATS, and TRIMs. The extension of patent protection under TRIPS has made it difficult for the company to produce generic drugs. However, Sun Pharmaceutical has adapted by investing in research and development and expanding its product portfolio. The liberalization of healthcare services under GATS has created competition, but Sun Pharmaceutical has responded by investing in its own healthcare services and expanding its international operations. TRIMs have prohibited certain investment measures, making it harder for Indian pharmaceutical companies to compete globally. Despite this, Sun Pharmaceutical has adapted by investing in research and development and expanding its international operations.

Answer *any two* of the following questions:

- (a) How has the TRIPS agreement impacted Sun Pharmaceutical Industries Limited? Discuss the company's response to this regulatory change and its impact on the company's product portfolio.
- (b) How has the liberalization of healthcare services under the GATS impacted Sun Pharmaceutical? What steps has the company taken to remain competitive in the face of this change?
- (c) What impact has the TRIMs agreement had on Sun Pharmaceutical's ability to compete in the global market? Discuss the company's response to this regulatory change and its efforts to expand its international operations.

SECTION C

3. **Attempt any *one* part of the following:** **10 x 1 = 10**
- (a) Compare and contrast the absolute advantage theory and the Huckster-Ohlin theory. Analyze their strengths and weaknesses in explaining patterns of international trade.
 - (b) Evaluate the key principles of the World Trade Organization (WTO), including the principles of most favored nation (MFN) treatment and national treatment obligations. How do these principles promote fairness and non-discrimination in international trade?
4. **Attempt any *one* part of the following:** **10 x 1 = 10**
- (a) Evaluate the relationship between the World Trade Organization (WTO) and environmental protection. Discuss the WTO's role in promoting sustainable trade practices and resolving conflicts between trade and environmental objectives.
 - (b) Analyze the WTO's jurisprudence on the Technical Barriers to Trade (TBT) and Sanitary and Phytosanitary (SPS) Agreements. Discuss key cases and their implications for international trade.
5. **Attempt any *one* part of the following:** **10 x 1 = 10**
- (a) Explain the movements towards unification of national commercial laws.
 - (b) What are Uniform Customs and Practices on Documentary Credits (UCP)? Who publishes the UCP? What is the purpose and main provisions of the UCP? How are the UCP applied?
6. **Attempt any *one* part of the following:** **10 x 1 = 10**
- (a) Evaluate the Foreign Exchange Management Act, 1999 in the context of foreign exchange regulations in India. Discuss the objectives and major provisions of the Act, and explain its significance for individuals and businesses engaged in foreign exchange transactions.
 - (b) Analyze the Customs Act, 1962 and its significance in regulating customs procedures and trade facilitation in India. Discuss the key provisions of the Act and their implications for importers, exporters, and customs authorities.
7. **Attempt any *one* part of the following:** **10 x 1 = 10**
- (a) What are some of the key issues that developing countries commonly advocate for in international forums? Explain.
 - (b) Explain New Development Bank and its challenges in international trade laws.